

23AHCV01863 23AHCV01863

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-05
Motion: MOTION FOR PROTECTIVE ORDER; MOTION FOR ORDER COMPELLING DEPOSITION
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Case Number: 23AHCV01863 Hearing Date: August 5, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JESSICA
AUSTIN,

Plaintiff(s),

vs.

CITY OF
PASADENA, et al.,

Defendant(s).

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CASE NO.: 23AHCv01863

[TENTATIVE]

ORDER RE: MOTION FOR PROTECTIVE ORDER; MOTION FOR ORDER COMPELLING
DEPOSITION

Dept.

3

8:30

a.m.

August 5,
2026

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I.

INTRODUCTION

On April 7, 2026, defendant City of
Pasadena ("Defendant") filed a motion for protective order with a request for \$4,562.50
in sanctions against Corey W. Glave, counsel for plaintiff Jessica Austin
("Plaintiff"). Defendant argues that a protective order is needed to bar
Plaintiff's counsel from making speaking objections and coaching deposition
witnesses.

On April 8, 2026, Defendant filed a motion to compel Plaintiff's appearance and deposition testimony. Defendant also requests sanctions in the amount of \$6,410. Defendant argues an order is necessary because Plaintiff's counsel unilaterally suspended the deposition without good cause.

Plaintiff filed an opposition brief to the motion for a protective order on April 27, 2026.

Defendant filed a reply brief in support of its motion for a protective order on April 28, 2026.

On May 5, 2026, the Court scheduled the two motions to be heard on the same day.

Plaintiff filed an opposition brief to Defendant's motion to compel on July 14, 2026.

Defendant filed a reply brief in support of its motion to compel on July 29, 2026.

II.

DISCUSSION

On February 10, 2026, the Court ordered Plaintiff to appear for a second session of her deposition to answer 71 questions that she previously refused to answer after asserting objections based on *Pitchess v. Superior Court* (1972) 11 Cal.3d 531 ("Pitchess"). The Court also ordered Plaintiff to appear and answer "any other questions about other relevant, non-privileged matter" not previously asked. Plaintiff appeared for her deposition as ordered on March 6, 2026, but Plaintiff's counsel suspended the deposition after less than four hours on the record.

Defendant requests the Court order Plaintiff to appear for her continued deposition and issue a protective order prohibiting Plaintiff's counsel from interposing speaking objections. Defendant identifies seven instances of Mr. Glave's speaking objections and claims that he coached Plaintiff to provide certain testimony.

First, Defendant argues that Mr. Glave

improperly injected factual matters into his speaking objections so that Plaintiff could use them in formulating her responses. The Court disagrees. Although Mr. Glave referred to certain facts that Plaintiff previously testified about, there's no evidence that it affected her testimony. She responded that she would have to refresh her recollection with documents (p. 143:7-8) and that she did not recall (p. 143:13, 148:11.)

Second, Defendant argues that Plaintiff's counsel improperly instructed Plaintiff to incorporate or adopt her previous testimony by expressly limiting the scope of her allowed response or directing his client to consider whether to respond with "all of the above." The Court agrees that Plaintiff's counsel improperly coached his client when he repeatedly interjected that Plaintiff "gets credited with the testimony given this morning", which would then prompt Plaintiff to respond to questions by stating, "Outside of what I've stated earlier, not that I can recall." (See e.g., 144:25-145:11.)

In opposition, Plaintiff argues that Mr. Glave's objections were appropriate because the questions required Plaintiff to repeat prior testimony and apply facts to law in order to answer questions about legal contentions in violation of *Rifkind v. Superior Court* (1994) 22 Cal.App.4th 1255, 1262.) Plaintiff further argues that no additional deposition should be compelled because the deposition was suspended with defense counsel's agreement and Defendant did not adequately meet and confer before filing these motions.

The record does not reflect Plaintiff's narrative. Mr. Glave's objections were lengthy and went beyond simply stating the ground for the objection. And even if the questions were objectionable based on *Rifkind*, depositions "shall proceed" subject to objections unless the objecting party suspends the deposition to pursue a motion for protective order. (Code Civ. Proc., § 2025.4560, subd. (b).) Plaintiff did not seek a protective order and even if one were requested, Plaintiff fails to make any evidentiary showing that one is necessary. Defense counsel never restricted Plaintiff from relying on former testimony and would not know if Plaintiff would in fact rely on former testimony unless Defendant asked the questions Plaintiff's counsel found objectionable.

Moreover, contrary to Plaintiff's insistence, defense counsel did not agree to suspend the deposition but instead stated that he would be "happy" to have the Court address the parties' dispute.

Additionally, defense counsel made sufficient attempts to resolve the issue by sending a meet and confer letter by email on March 20, 2026. Plaintiff's counsel responded to this letter on March 30, 2026, arguing that Defendant "refused to credit [Plaintiff] for her prior factual testimony" and only agreed to produce Plaintiff for another deposition session to answer questions about her damages without justifying this unilaterally-imposed limitation, making these two motions necessary.

III.

CONCLUSION

In light of the foregoing, Defendant's motion to compel another deposition of Plaintiff is GRANTED and Defendant's motion for a protective order is GRANTED.

Defendant's request for sanctions is GRANTED in part and imposed against Plaintiff's counsel in the reduced amount of \$3,535 consisting of \$1,285 for the cost of the deposition held on March 6, 2026 and \$2,250 for 6 hours at defense counsel's hourly rate of \$375.

Plaintiff is ordered to appear for her deposition within 20 days of the date of this Order to answer Question Nos. 41 through 43 and 45-71 as ordered on February 10, 2026, as well as questions about any other nonprivileged matters that have not been previously asked.

Dated
this 5th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a

submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.